

24STCV19216 24STCV19216

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BACKGROUND

This is an employment discrimination action. Plaintiff Rafael Alvarez alleges he was unjustly discriminated against during his apprenticeship with the California-Nevada Electrical Joint Apprenticeship and Training Committee ("JATC").

On September 5, 2025, Alvarez filed his second amended complaint against Defendants JATC, Outsource Utility Contractor Co., Hampton Tedder Electric Co., Faith Electric LLC, Eugene Gloudeman, and Don Jamison, Thomas George. The FAC alleged seven employment-related causes of action.

On March 16, 2026, Defendants Outsource Utility Contractor Co. and Thomas George filed a cross-complaint against Rafael Alvarez. The cross-complaint alleges two causes of action: (1) Violation of the California Invasion of Privacy Act; and (2) Invasion of Privacy.

On June 10, 2026, Alvarez filed a cross-complaint against JATC, Outsource Utility Contractor Co., Hampton Tedder Electric Co., and Faith Electric LLC. Alvarez's cross-complaint alleges three causes of action based on the cross-complaint filed against Alvarez: (1) Indemnification Pursuant to Corporations Code § 317; (2) Indemnification Pursuant to Labor Code § 2802; and (3) Declaratory Relief.

On June 24, 2026, JATC filed a demurrer to Alvarez's cross-complaint.

On July 27, 2026, Alvarez filed an

opposition.

On June 3, 2026, JATC filed a reply.

TENTATIVE RULING

JATC's demurrer to
Alvarez's cross-complaint is SUSTAINED with leave to amend.

Any amended
cross-complaint must be filed and served within twenty (20) days.

LEGAL STANDARD

"[A] demurrer tests the
legal sufficiency of the allegations in a complaint." (Lewis v. Safeway,
Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to
challenge defects that appear on the face of the pleading under attack or from
matters outside the pleading that are judicially noticeable. (See Donabedian
v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a
demurrer, a court may not consider declarations, matters not subject to
judicial notice, or documents not accepted for the truth of their contents].)
For purposes of ruling on a demurrer, all facts pleaded in a complaint are
assumed to be true, but the reviewing court does not assume the truth of
conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2
Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the
complaint, as it stands, states a cause of action. (See Hahn
v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is
sustained, leave to amend must be allowed where there is a reasonable
possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is
on the plaintiff to show the court that a pleading can be amended successfully.
(Ibid.; see also
Lewis v. YouTube, LLC (2015)
244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility
that the plaintiff can state a good cause of action, it is error to sustain a
demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet

and Confer

Before filing a demurrer,

the demurring or moving party shall meet and confer with the party who has

filed the pleading in person,

by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).) Furthermore, the demurring or moving party must file

a declaration detailing their meet and confer efforts. (Code Civ.

Proc., § 430.41, subd. (a)(3).)

Here, the

parties discussed the demurrer by telephone. (See Velto Decl.,

¶ 6.) Therefore, the meet and confer requirement has

been satisfied. (See Code Civ. Proc., § 430.41, subd. (a).)

II.

Indemnification

– Corporations Code § 317 (Cause of Action No. 1)

Under Corporation Code

section 317:

A corporation shall have power to

indemnify any person who was or is a party or is threatened to be made a party

to any proceeding ... by reason of the fact that the person is or was an agent of

the corporation, against expenses, judgments, fines, settlements, and other

amounts actually and reasonably incurred in connection with the proceeding if

that person acted in good faith and in a manner the person reasonably believed

to be in the best interests of the corporation and, in the case of a criminal

proceeding, had no reasonable cause to believe the conduct of the person was

unlawful.

(Corp. Code, § 317, subd. (b).)

The same statute defines

an agent as any person:

[W]ho is or was a director, officer, employee or other agent of the corporation, or is or was serving at the request of the corporation as a director, officer, employee or agent of another foreign or domestic corporation, partnership, joint venture, trust or other enterprise, or was a director, officer, employee or agent of a foreign or domestic corporation which was a predecessor corporation of the corporation or of another enterprise at the request of the predecessor corporation

(Corp. Code, § 317, subd. (a).)

Alvarez alleges that JATC was one of his joint employers. (Cross-Compl., ¶ 7.) Alvarez seeks reimbursement from JATC for money “reasonably incurred to obtain independent counsel to defend an action for conduct within the course and scope of his employment.” (Cross-Compl., ¶ 20.)

The Court finds that Alvarez has not sufficiently pled that JATC was his joint employer. Simply referring to JATC as a joint employer with no facts to support the assertion is not enough. The allegation is a legal conclusion and insufficient without more to survive demurrer. (See *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Alvarez must provide supporting factual allegations as to JATC’s level of control and oversight over Alvarez’s work.

In his opposition, Alvarez contends he sufficiently alleged he was employed by JATC. However, Alvarez’s contention largely relies on allegations from his second amended complaint, not the cross-complaint. (See Opp’n, pp. 3:15-4:23.) The Court cannot consider these allegations because Alvarez did not request the Court to take judicial notice of said complaint and even if such a request were made, the truth of the allegations could not be judicially noticed. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) When considering a challenge to Alvarez’s cross-complaint, the sufficiency of the allegations of the cross-complaint are at issue. The Court finds Alvarez did not sufficiently allege in the cross-complaint that he was JATC’s employee.

For these reasons, the demurrer to his cause of action is sustained. Because the Court finds that it is reasonably possible that Alvarez can successfully cure the defect, the Court

grants Alvarez leave to amend.

III.

Employee

Indemnification – Labor Code § 2802 (Cause of Action No. 2)

To state a cause of action

for employee indemnification, the plaintiff must allege: (1) employee made expenditures, or incurred losses; (2) in direct consequence of the employee's discharge of duties, or obedience of employer directions; and (3) those expenditures or losses were necessary. (See *Cassady v. Morgan, Lewis & Bockius LLP* (2006) 145 Cal.App.4th 220, 230.)

As discussed in the prior

section, Alvarez's cross-complaint is devoid of sufficient factual allegations that JATC was his employer. (See § II.) Thus, for the same reasons, the demurrer to this cause of action is sustained. The Court grants Alvarez leave to amend.

IV.

Declaratory

Relief (Cause of Action No. 3)

This cause of action is

subject to demurrer because it is derivative of the two indemnification causes of action. (See Cross-Compl., § 37.)

CONCLUSION;

For the foregoing reasons,

JATC's demurrer to Alvarez's cross-complaint is SUSTAINED with leave to amend.

Alvarez must filed

and serve any amended cross-complaint within twenty (20) days of the Court's order.